

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

I move to amend House Bill No. 3443 by substituting the attached floor substitute (Request #3939) for the title, enacting clause, and entire body of the measure.

Submitted by:

Avery Frix
Senator Frix

I hereby grant permission for the floor substitute to be adopted.

Darryl Jech
Senator Jech, Chair (required)

Avery Frix
Senator Frix

Jerry Alvord
Senator Alvord

Senator Bergstrom

Senator Dossett

Senator Goodwin

Senator Paxton, President Pro Tempore

Senator Guthrie

Senator Hines

Senator Pugh

Senator Seifried

Senator Stewart

Senator Weaver

Senator Daniels, Majority Floor Leader

Note: Aeronautics and Transportation committee majority requires seven (7) members' signatures.

Frix-MSBB-FS-HB3443
4/21/2026 9:14 AM

1

(Floor Amendments Only)

Date and Time Filed: 4-21-26 2:42pm jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 3443

By: Wilk and Miller of the
House

and

Frix of the Senate

FLOOR SUBSTITUTE

An Act relating to transportation; authorizing the modification of certain permit fees; requiring use of certain formula for calculation; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-103, as amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-103), which relates to width, height, and length of vehicle and load; modifying certain fee; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-103G, as amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-103G), which relates to oversize or overweight permits; modifying certain fees; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-109, as amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-109), which relates to load limits; modifying certain fees; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-116, as last amended by Section 6, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 14-116), which relates to permit fees; modifying certain fees; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-118, as amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-118), which relates to motor carriers; modifying certain fees; requiring deposit of certain amount in certain fund; amending 47 O.S. 2021, Section 14-120, as amended by Section

1 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
2 Section 14-120), which relates to movement of certain
3 manufactured items; modifying certain fees; requiring
4 deposit of certain amount in certain fund; amending
5 47 O.S. 2021, Section 14-121, as amended by Section
6 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
7 Section 14-121), which relates to special combination
8 vehicles; modifying certain fees; requiring deposit
9 of certain amount in certain fund; amending 69 O.S.
10 2021, Section 1521, as amended by Section 1, Chapter
11 460, O.S.L. 2025 (69 O.S. Supp. 2025, Section 1521),
12 which relates to the Rebuilding Oklahoma Access and
13 Driver Safety Fund; raising certain apportionment for
14 certain fiscal years; updating statutory language;
15 providing for codification; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 14-127 of Title 47, unless there
20 is created a duplication in numbering, reads as follows:

21 The Department of Transportation is authorized to increase any
22 oversize- or overweight-related permit fees found in its
23 administrative rules including, but not limited to:

- 24 1. Special Over-height Trailer Permit for Limited Travel
thirty-day (30-day) permit;
2. Longer Combination Vehicle Annual Permit; and
3. Special Over-height Trailer Permit for Limited Travel Annual
Permit.

The Department shall use a formula for calculating the changes
to the fees using a cost-of-living adjustment through the year 2024.

1 When collecting the fees authorized under the provisions of this
2 section, the Department shall deposit the amount of the difference
3 between the fees as of the effective date of this act and the
4 increased fees authorized by this section to the credit of the
5 Rebuilding Oklahoma Access and Driver Safety Fund.

6 SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-103, as
7 amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
8 Section 14-103), is amended to read as follows:

9 Section 14-103. A. Except as otherwise provided for by this
10 chapter, no vehicle, with or without load, shall have a total
11 outside width in excess of one hundred two (102) inches excluding:

12 1. Tire bulge;

13 2. Approved safety devices;

14 3. A retracted awning with a width of eight (8) inches or less
15 or other appurtenance of four (4) inches or less which is attached
16 to the side of a recreational vehicle, as defined in Section 1102 of
17 this title; and

18 4. Pins used as a safety precaution or as a load-assisting
19 device if the pins do not extend the overall width of the vehicle
20 beyond nine (9) feet. The State of Oklahoma hereby declares it has
21 determined, in accordance with 23 C.F.R., Section 658.15, that such
22 pins are necessary for the safe and efficient operation of motor
23 vehicles.
24

1 The provisions of this subsection shall not apply to any person
2 engaged in the hauling of round baled hay with a total outside width
3 of eleven (11) feet or less when the hay is owned by such person and
4 is being hauled for any purpose other than resale. The provisions
5 of this subsection shall also not apply to any county official or
6 employee engaged in the hauling or pulling of a trailer or equipment
7 owned by the county on the county roads of such county.

8 B. Except as otherwise provided for by this chapter:

9 1. No vehicle, with or without load, shall exceed a height of
10 thirteen and one-half (13 1/2) feet on any county road, or fourteen
11 (14) feet on any turnpike, interstate, U.S. or state highway, unless
12 a greater height is authorized by a special permit issued by the
13 Executive Director of the Department of Transportation or an
14 authorized representative of the Department of Transportation
15 specifying the highways to be used, consistent with public
16 convenience and safety. The prohibitions on movement as prescribed
17 in subsection F of Section 14-101 of this title and paragraph 1 of
18 subsection G of Section 14-101 of this title shall not apply to
19 vehicles operated pursuant to such permits;

20 2. An official state bridge vertical clearance map providing
21 clearance heights as posted for bridges on the interstate, U.S. and
22 state highway systems shall be available on the Oklahoma Department
23 of Transportation website; and
24

1 3. Operators and owners of vehicles which exceed or have loads
2 which exceed thirteen and one-half (13 1/2) feet shall be held
3 liable for all damages to any part of structures spanning the
4 highway or damages suffered by other affected parties caused by the
5 vehicle or load exceeding the posted height.

6 C. Except as otherwise provided for by this chapter:

7 1. No single truck, with or without load, shall have an overall
8 length, inclusive of front and rear bumpers, in excess of forty-five
9 (45) feet;

10 2. No single bus, with or without load, shall have an overall
11 length, inclusive of front and rear bumpers, in excess of forty-five
12 (45) feet;

13 3. a. On the National Network of Highways which includes the
14 National System of Interstate and Defense Highways and
15 four-lane divided Federal Aid Primary System Highways,
16 no semitrailer operating in a truck-
17 tractor/semitrailer combination shall have a length
18 greater than fifty-three (53) feet, except as provided
19 in subsection C of Section 14-118 of this title which
20 shall apply to semitrailers exceeding fifty-three (53)
21 feet but not exceeding fifty-nine (59) feet six (6)
22 inches. On the National System of Interstate and
23 Defense Highways and four-lane divided Federal Aid
24 Primary System Highways, no semitrailer or trailer

1 operating in a truck-tractor/semitrailer and trailer
2 combination shall have a length greater than fifty-
3 three (53) feet;

4 b. On roads and highways not a part of the National
5 System of Interstate and Defense Highways or four-lane
6 divided Federal Aid Primary System Highways, no
7 semitrailer operating in a truck-tractor/semitrailer
8 combination shall have a length greater than fifty-
9 three (53) feet and no semitrailer or trailer
10 operating in a truck-tractor/semitrailer and trailer
11 combination shall have a length greater than twenty-
12 nine (29) feet. Except as provided for in subsection
13 D of Section 14-118 of this title, no other
14 combination of vehicles shall have an overall length,
15 inclusive of front and rear bumpers, in excess of
16 seventy (70) feet on all roads and highways. For the
17 purposes of this paragraph, oil field rig-up trucks
18 shall be considered to be truck-tractors, when towing
19 a trailer or semitrailer;

20 c. On the National Network of Highways the overall length
21 limitation of a towaway trailer transporter
22 combination may exceed length restrictions up to
23 eighty-two (82) feet; and

24 d. As used in this section:

1 (1) ~~The~~ the term "trailer transporter towing unit"
2 shall mean a power unit that is not used to carry
3 property when operating in a towaway trailer
4 transporter combination, and

5 (2) ~~The~~ the term "towaway trailer transporter
6 combination" shall mean a combination of vehicles
7 consisting of a trailer transporter towing unit
8 and two (2) trailers or semitrailers with a total
9 weight that does not exceed twenty-six thousand
10 (26,000) pounds; and in which the trailers or
11 semitrailers carry no property and constitute
12 inventory property of a manufacturer, distributor
13 or dealer of such trailers or semitrailers;

14 4. No combination of vehicles shall consist of more than two
15 units, except:

- 16 a. one truck and semitrailer or truck-tractor/semitrailer
17 combination may tow one complete trailer or
18 semitrailer, or
19 b. vans, suburbans, blazers or other similar types of
20 vehicles and self-propelled recreational vehicles with
21 a three-quarter (3/4) ton or more rated capacity may
22 tow a semitrailer and one complete trailer or
23 semitrailer for recreational purposes only, provided
24

1 the overall length, inclusive of the front and rear
2 bumpers, does not exceed sixty-five (65) feet;

3 5. Poles and gas lines used to maintain public utility
4 services, not to include new construction, may be moved during
5 daylight hours, and during nighttime hours only in an emergency,
6 subject to traffic and road restrictions promulgated by the
7 Executive Director of the Department of Transportation, when the
8 overall length does not exceed eighty (80) feet. When this length
9 is exceeded, these loads are subject to the requirements of Section
10 14-118 of this title;

11 6. For the purposes of paragraphs 1, 3, and 4 of this
12 subsection, the length of unitized equipment, which is defined to be
13 equipment so constructed and attached to a rubber-tired vehicle that
14 the vehicle and load become a unit and are for all practical
15 purposes inseparable, shall be the length of the vehicle itself, and
16 shall not include any protrusion of the equipment load so
17 constructed or attached. The equipment shall not protrude for a
18 distance greater than two-thirds ($2/3$) of the wheel base of the
19 vehicle, shall not impair the driver's vision, and if less than
20 seven (7) feet above the roadway, shall be safely marked, flagged or
21 illuminated. Any such protruding structure shall be securely held
22 in place to prevent dropping or swaying. Unitized equipment shall
23 carry such safety equipment as shall be determined to be necessary
24

1 for the safety, health, and welfare of the driving public by the
2 Executive Director of the Department of Transportation;

3 7. For the purposes of paragraphs 1, 3, and 4 of this
4 subsection, a truck-tractor, when being towed by another vehicle
5 with the wheels of its steering axle raised off the roadway, shall
6 be considered to be a semitrailer as defined in Section 1-162 of
7 this title;

8 8. The provisions of paragraphs 1 and 3 of this subsection
9 shall not apply to any contractor or subcontractor, or agents or
10 employees of any contractor or subcontractor, while engaged in
11 transporting material to the site of a project being constructed by,
12 for, or on behalf of this state or any city, town, county, or
13 subdivision of this state; and

14 9. Special mobilized machinery, as defined in Section 1102 of
15 this title, which exceeds the size provisions of this section shall
16 only use the highways of this state by special permit issued by the
17 Executive Director of the Department of Transportation or an
18 authorized representative of the Executive Director of the
19 Department of Transportation. Such special permit shall be:

20 a. a single-trip permit issued under the provisions of
21 Section 14-116 of this title, or

22 b. a special annual oversize permit issued for one (1)
23 calendar year period upon payment of a fee of ~~Ten~~
24 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any

1 amount as provided by subsection H of Section 14-118
2 of this title. The Department shall deposit Five
3 Dollars (\$5.00) of each such fee collected to the
4 credit of the Rebuilding Oklahoma Access and Driver
5 Safety Fund.

6 SECTION 3. AMENDATORY 47 O.S. 2021, Section 14-103G, as
7 amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
8 Section 14-103G), is amended to read as follows:

9 Section 14-103G. A. 1. The Department of Transportation may
10 issue an annual vehicle permit under the provisions of this
11 subsection to a specific vehicle, for the movement of oversize or
12 overweight loads that cannot reasonably be dismantled. Unless
13 otherwise provided by law, permits issued under this subsection
14 shall be subject to the conditions described in paragraphs 2 through
15 8 of this subsection.

16 2. Oversize or overweight loads operating under an annual
17 vehicle permit shall not exceed:

- 18 a. twelve (12) feet in width,
- 19 b. fourteen (14) feet in height,
- 20 c. one hundred ten (110) feet in length, or
- 21 d. one hundred twenty thousand (120,000) pounds gross
22 weight.

23 3. Oversize or overweight loads operating under an annual
24 vehicle permit under this subsection shall not transport a load that

1 has more than a twenty-five-foot front overhang, or more than a
2 thirty-foot rear overhang.

3 4. The fee for an annual vehicle permit shall be ~~Four Thousand~~
4 ~~Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars
5 (\$5,440.00) and shall be nonrefundable. The Department shall
6 deposit One Thousand Four Hundred Forty Dollars (\$1,440.00) of each
7 such fee collected to the credit of the Rebuilding Oklahoma Access
8 and Driver Safety Fund.

9 5. The annual vehicle permit shall be issued for one (1)
10 calendar year period and shall commence upon the date specified on
11 the permit.

12 6. An annual vehicle permit issued pursuant to this subsection
13 shall be nontransferable between permittees.

14 7. The permitted vehicle or vehicle combination shall be
15 registered in accordance with the provisions of Chapter 14 of this
16 title for maximum weight.

17 8. An annual vehicle permit issued pursuant to this subsection
18 may be transferred from one vehicle to another vehicle in the fleet
19 of the permittee provided:

20 a. the permitted vehicle is destroyed or otherwise
21 becomes permanently inoperable to the extent that the
22 vehicle will no longer be utilized, and the permittee
23 presents proof to the Department of Transportation
24 that the negotiable certificate of title or other

1 qualifying documentation has been surrendered to the
2 Department of Transportation, or

3 b. the certificate of title to the permitted vehicle is
4 transferred to someone other than the permittee, and
5 the permittee presents proof to the Department of
6 Transportation that the negotiable certificate of
7 title or other qualifying documentation has been
8 transferred from the permittee.

9 9. A permit issued for loads specific to turbine blades, used
10 for the purpose of wind generation, may exceed a length of one
11 hundred ten (110) feet.

12 B. 1. The Department of Transportation may issue an annual
13 vehicle permit under this subsection to a specific motor carrier,
14 for the movement of oversize or overweight loads that cannot
15 reasonably be dismantled. An annual vehicle permit issued under
16 this subsection may be transferred from one vehicle to another
17 vehicle in the fleet of the permittee provided:

18 a. that no more than one vehicle is operating at a time,
19 and
20 b. the original certified permit is carried in the
21 vehicle that is being operated under the terms of the
22 permit.

23 2. An annual vehicle permit issued under this subsection shall
24 be sent to the permittee via first-class, registered mail, or at the

1 request and expense of the permittee via overnight delivery service.

2 The annual vehicle permit shall not be duplicated. The annual
3 vehicle permit shall be replaced only if:

4 a. the permittee did not receive the original permit
5 within seven (7) business days after the date of
6 issuance,

7 b. a request for replacement is submitted to the
8 Department of Transportation within ten (10) business
9 days after the original date of issuance of the
10 permit, and

11 c. the request for replacement is accompanied by a
12 notarized statement signed by a principal or officer
13 of the permittee acknowledging that the permittee
14 understands the permit may not be duplicated and that
15 if the original permit is located, the permittee shall
16 return either the original or replacement permit to
17 the Department of Transportation.

18 3. A request for replacement of an annual vehicle permit issued
19 pursuant to the provisions of this subsection shall be denied if the
20 Department of Transportation can verify that the permittee received
21 the original annual vehicle permit.

22 4. Lost, misplaced, damaged, destroyed or otherwise unusable
23 annual vehicle permits shall not be replaced. A new permit shall be
24 required and shall be issued by the Department of Transportation.

1 C. 1. The Department of Transportation may issue an annual
2 fleet permit under this subsection to an electric utility, regulated
3 by the Corporation Commission or a rural electric cooperative solely
4 for the movement of poles. An annual fleet permit issued under this
5 subsection may be used by any vehicle in the fleet of the permittee
6 provided that a certified copy of the permit is carried in each
7 vehicle that is being operated under the terms of the permit.

8 2. Oversize loads operating under an annual permit issued
9 pursuant to this subsection shall not exceed:

- 10 a. twelve (12) feet in width,
- 11 b. fourteen (14) feet in height, or
- 12 c. fifty-five (55) feet in length.

13 3. The annual fee for an annual fleet permit issued pursuant to
14 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
15 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be
16 nonrefundable. The Department shall deposit One Thousand Two
17 Hundred Seventy Dollars (\$1,270.00) of each such fee collected to
18 the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

19 4. The annual fleet permit shall be issued for a one-calendar-
20 year period and shall commence upon the date specified on the
21 permit.

22 5. The annual fleet permit issued under this subsection shall
23 be sent to the permittee via first class, registered mail, or at the
24

1 request and expense of the permittee via overnight delivery service.

2 The annual permit shall be replaced only if:

3 a. the permittee did not receive the original permit
4 within seven (7) business days after the date of the
5 issuance,

6 b. a request for replacement is submitted to the
7 Department of Transportation within ten (10) business
8 days after the original date of issuance of the
9 permit, and

10 c. the request for replacement is accompanied by a
11 notarized statement signed by an authorized person of
12 the permittee acknowledging that if the original
13 permit is located, the permittee shall either return
14 the original or replacement permit to the Department
15 of Transportation.

16 6. A request for replacement of an annual permit issued under
17 the provisions of this subsection shall be denied if the Department
18 of Transportation can verify the permittee received the original
19 annual permit.

20 7. Lost, misplaced, damaged, destroyed or otherwise unusable
21 annual permits shall not be replaced. A new permit shall be
22 required and shall be issued by the Department of Transportation.

23 8. For the purposes of paragraph 5 of subsection C of Section
24 14-103 of this title, the term "emergency" means any permitted

1 movement of poles pursuant to the provisions of this subsection that
2 is not for new construction of electric distribution facilities.

3 D. 1. The Department of Transportation shall issue an annual
4 vehicle permit under this subsection to a transportation company or
5 manufacturer of portable buildings solely for the movement of
6 oversize portable buildings for a specific manufacturer of portable
7 buildings. An annual vehicle permit issued under this subsection
8 may not be transferred from one vehicle to another vehicle in the
9 fleet. The name of the manufacturer shall be on the permit and on
10 any portable building being moved. The original certified permit
11 shall be carried in the vehicle that is being operated under the
12 terms of the permit.

13 2. Oversize loads operating under an annual vehicle permit
14 issued pursuant to this subsection shall not exceed:

- 15 a. twelve (12) feet in width at the wall with no more
16 than a three-inch-eave overhang, or
17 b. fourteen (14) feet in height.

18 3. The total gross weight of oversize loads operating under an
19 annual vehicle permit issued pursuant to this subsection shall not
20 exceed forty-five thousand (45,000) pounds.

21 4. The tow vehicle shall be limited to two axles, and the
22 vehicle identification number of the vehicle shall be on the permit.

23 5. The fee for an annual vehicle permit issued pursuant to this
24 subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty

1 Dollars (\$660.00) and shall be nonrefundable. The Department shall
2 deposit One Hundred Sixty Dollars (\$160.00) of each such fee
3 collected to the credit of the Rebuilding Oklahoma Access and Driver
4 Safety Fund.

5 6. An annual vehicle permit issued under this subsection shall
6 be sent to the permittee via first-class, registered mail, or at the
7 request and expense of the permittee via overnight delivery service.
8 The annual vehicle permit shall not be duplicated. The annual
9 vehicle permit shall be replaced only if:

- 10 a. the permittee did not receive the original permit
11 within seven (7) business days after the date of
12 issuance,
 - 13 b. a request for replacement is submitted to the
14 Department of Transportation within ten (10) business
15 days after the original date of issuance of the
16 permit, and
 - 17 c. the request for replacement is accompanied by a
18 notarized statement signed by a principal or officer
19 of the permittee acknowledging that the permittee
20 understands the permit may not be duplicated and that
21 if the original permit is located, the permittee shall
22 return either the original or replacement permit to
23 the Department of Transportation.
- 24

1 7. A request for replacement of an annual vehicle permit issued
2 pursuant to the provisions of this subsection shall be denied if the
3 Department of Transportation can verify that the permittee received
4 the original annual vehicle permit.

5 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
6 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
7 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00). The Department shall
8 deposit Ten Dollars (\$10.00) of each such fee collected to the
9 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

10 SECTION 4. AMENDATORY 47 O.S. 2021, Section 14-109, as
11 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
12 Section 14-109), is amended to read as follows:

13 Section 14-109. A. On any road or highway:

14 1. No single axle weight shall exceed twenty thousand (20,000)
15 pounds; and

16 2. The total gross weight in pounds imposed thereon by a
17 vehicle or combination of vehicles shall not exceed the value
18 calculated in accordance with the Federal Bridge formula imposed by
19 23 U.S.C., Section 127.

20 B. Except as to gross limits, the formula of this section shall
21 not apply to a truck-tractor and dump semitrailer when used as a
22 combination unit. In no event shall the maximum load in pounds
23 carried by any set of tandem axles exceed thirty-four thousand
24

1 (34,000) pounds. Any vehicle operating with split tandem axles or
2 tri-axles shall adhere to the formula.

3 C. Except for loads moving under special permits as provided in
4 this title, no department or agency of this state or any county,
5 city, or public entity thereof shall pay for any material that
6 exceeds the legal weight limits moving in interstate or intrastate
7 commerce in excess of the legal load limits of this state.

8 D. 1. An annual special overload permit may be purchased for
9 vehicles transporting roll-off recycle metals, rock, sand, gravel,
10 coal, flour, timber, pulpwood, and chips in their natural state, oil
11 field fluids, oil field equipment or equipment used in oil and gas
12 well drilling or exploration, and vehicles transporting grain,
13 fertilizer, cottonseed, cotton, livestock, peanuts, canola,
14 sunflowers, soybeans, feed, any other raw agricultural products, and
15 any other unprocessed agricultural products, if the following
16 conditions are met:

- 17 a. the vehicles are registered for the maximum allowable
18 rate,
- 19 b. the vehicles do not exceed five percent (5%) of the
20 gross limits set forth in subsection A of this
21 section,
- 22 c. the vehicles do not exceed eight percent (8%) of the
23 axle limits set forth in subsection A of this section,
24

- d. no component of the vehicles exceeds the manufacturer's component weight rating as shown on the vehicle certification label or tag, and
- e. the vehicles operating pursuant to the provisions of this paragraph will not be allowed to operate on the National System of Interstate and Defense Highways.

2. Vehicles operating pursuant to this section must register for the maximum allowable rate and additionally shall purchase a nontransferable annual special overload permit from the Department of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~ Four Hundred Sixty Dollars (\$460.00). ~~All monies~~ Three Hundred Fifty Dollars (\$350.00) of each such fee collected shall be deposited to the credit of the Highway Construction and Maintenance Fund. One Hundred Ten Dollars (\$110.00) of each such fee collected shall be deposited to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

E. 1. Oversize or overweight vehicles used for specialized transportation if the maximum weight does not exceed twenty-three thousand (23,000) pounds on any single axle and:

- a. is a dual lane trailer with dual lane axles and the width of the transport vehicle or trailer exceeds twelve (12) feet in width, or
- b. the overall gross vehicle weight of a single trailer meets or exceeds three hundred thousand (300,000)

1 pounds, originates or terminates at the Tulsa Port of
2 Catoosa, and the trip is confined within a thirty-mile
3 radius of the Port.

4 2. Permit fees for oversize or overweight vehicles used for
5 specialized transportation shall be in accordance with subsection A
6 of Section 14-116 of this title.

7 3. Vehicles operating pursuant to the provisions of this
8 paragraph will not be allowed to operate on the National System of
9 Interstate and Defense Highways.

10 F. Exceptions to this section will be:

11 1. Utility or refuse collection vehicles used by counties,
12 cities, or towns or by private companies contracted by counties,
13 cities, or towns if the following conditions are met:

14 a. calculation of weight for a utility or refuse
15 collection vehicle shall be "Gross Vehicle Weight".
16 The "Gross Vehicle Weight" of a utility or refuse
17 collection vehicle may not exceed the otherwise
18 applicable weight by more than fifteen percent (15%).
19 The weight on individual axles must not exceed the
20 manufacturer's component rating which includes axle,
21 suspension, wheels, rims, brakes, and tires as shown
22 on the vehicle certification label or tag, and
23
24

b. utility or refuse collection vehicles operated under these exceptions will not be allowed to operate on interstate highways;

2. A combination of a wrecker or tow vehicle and another vehicle or vehicle combination if:

a. the service provided by the wrecker or tow vehicle is needed to remove disabled, abandoned, or accident-damaged vehicles, and

b. the wrecker or tow vehicle is towing the other vehicle or vehicle combination directly to the nearest appropriate place of repair, terminal, or vehicle storage facility;

3. A vehicle operating pursuant to the provisions of paragraph 2 of this subsection shall not be allowed to operate on the National System of Interstate and Defense Highways unless it is a covered heavy-duty tow and recovery vehicle that:

a. is transporting a disabled vehicle from the place where the vehicle became disabled to the nearest appropriate repair facility, and

b. has a gross vehicle weight that is equal to or exceeds the gross vehicle weight of the disabled vehicle being transported; and

4. On the interstate highway system a vehicle designed to be used under emergency conditions to transport personnel and equipment

1 and to support the suppression of fires and mitigation of other
2 hazardous situations with a vehicle weight limit up to a maximum
3 gross vehicle weight of eighty-six thousand (86,000) pounds with
4 less than:

- 5 a. twenty-four thousand (24,000) pounds on a single
6 steering axle,
- 7 b. thirty-three thousand five hundred (33,500) pounds on
8 a single drive axle,
- 9 c. sixty-two thousand (62,000) pounds on a tandem axle,
10 or
- 11 d. fifty-two thousand (52,000) pounds on a tandem rear
12 drive steer axle.

13 G. 1. Any vehicle utilizing an auxiliary power or idle
14 reduction technology unit in order to promote reduction of fuel use
15 and emissions because of engine idling shall be allowed an
16 additional four hundred (400) pounds total to the total gross weight
17 limits set by this section.

18 2. To be eligible for the exception provided in this
19 subsection, the operator of the vehicle must obtain written proof or
20 certification of the weight of the auxiliary power or idle reduction
21 technology unit and be able to demonstrate or certify that the idle
22 reduction technology is fully functional.

23 3. Written proof or certification of the weight of the
24 auxiliary power or idle reduction technology unit must be available

1 to law enforcement officers if the vehicle is found in violation of
2 applicable weight laws. The additional weight allowed cannot exceed
3 four hundred (400) pounds or the actual proven or certified weight
4 of the unit, whichever is less.

5 H. On the Interstate Highway System, a vehicle carrying fluid
6 milk products shall be considered a load that cannot be easily
7 dismantled or divided, or "nondivisible".

8 I. Utility, refuse collection vehicles or a combination of a
9 wrecker or tow vehicle as described in paragraphs 1 and 2 of
10 subsection F of this section operating under exceptions shall
11 purchase an annual special overload permit from the Department of
12 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
13 Dollars (\$130.00). ~~All monies~~ One Hundred Dollars (\$100.00) of each
14 such fee collected shall be deposited to the credit of the Highway
15 Construction and Maintenance Fund. Thirty Dollars (\$30.00) of each
16 such fee collected shall be deposited to the credit of the
17 Rebuilding Oklahoma Access and Driver Safety Fund.

18 SECTION 5. AMENDATORY 47 O.S. 2021, Section 14-116, as
19 last amended by Section 6, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
20 2025, Section 14-116), is amended to read as follows:

21 Section 14-116. A. The Executive Director of the Department of
22 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
23 ~~(\$40.00)~~ Fifty-five Dollars (\$55.00) for any permit issued pursuant
24 to the provisions of Section 14-101 et seq. of this title. The

1 Department shall deposit Fifteen Dollars (\$15.00) of each such fee
2 collected to the credit of the Rebuilding Oklahoma Access and Driver
3 Safety Fund. In addition to the permit fee, the Executive Director
4 of the Department of Transportation shall charge a fee of ~~Ten~~
5 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) for each thousand pounds
6 in excess of the legal load limit. The Department shall deposit
7 Five Dollars (\$5.00) of each such fee collected to the credit of the
8 Rebuilding Oklahoma Access and Driver Safety Fund. The Executive
9 Director of the Department of Transportation shall establish any
10 necessary rules for collecting the fees.

11 B. The Department of Transportation is authorized to establish
12 an escrow account system for the payment of permit fees. Authorized
13 motor carriers meeting established credit requirements may
14 participate in the escrow account system for permits purchased from
15 all size and weight permit offices in this state. Carriers not
16 choosing to participate in the escrow account system shall be
17 required to make payment of the required fee or fees upon purchase
18 of each permit as required by law. All monies collected through the
19 escrow account system shall be deposited to a special account of the
20 Department of Transportation and placed in the custody of the State
21 Treasurer. Proceeds from permits purchased using the escrow account
22 system shall be distributed as provided for in subsection H of this
23 section. However, fees collected through such accounts for the
24 electronic transmission, transfer or delivery of permits, as

1 provided for in Section 14-118 of this title, shall be credited to
2 the Weigh Station Improvement Revolving Fund established pursuant to
3 Section 1167 of this title.

4 C. 1. Application for permits shall be made a reasonable time
5 in advance of the expected time of movement of such vehicles. For
6 emergencies affecting the health or safety of persons or a
7 community, permits may be issued for immediate movement.

8 2. Size and weight permit offices in all districts where
9 applicable shall issue permits to authorize carriers by telephone
10 during weekdays.

11 D. No overweight permit shall be valid until all license taxes
12 due the State of Oklahoma have been paid.

13 E. No permit violation shall be deemed to have occurred when an
14 oversize or overweight movement is made pursuant to a permit whose
15 stated weight or size exceeds the actual load.

16 F. Any permit issued for a truck or truck-tractor operating in
17 combination with a trailer or a semitrailer shall contain only the
18 license plate number for the truck or truck-tractor if the permittee
19 provides to the Department of Transportation a list containing the
20 license plate number, and such other information as the Department
21 of Transportation may prescribe by rule, for each trailer or
22 semitrailer which may be used for movement with the permit. When
23 the permittee provides the list described in this subsection, the
24 license plate number for any trailer or semitrailer to be moved with

1 the permit shall not be included on the permit; provided, a trailer
2 or semitrailer which is not on the list shall not be authorized to
3 be used for movement with the permit. It shall be the
4 responsibility of the permittee to ensure the list provided to the
5 Department of Transportation is maintained and updated with any
6 fleet changes. The Department of Transportation shall adopt any
7 rules deemed necessary to administer the provisions of this
8 subsection.

9 G. The first deliverer of motor vehicles designated truck
10 carriers or well service carriers manufactured in Oklahoma shall not
11 be required to purchase an overweight permit when being delivered to
12 the first purchaser.

13 H. Except as provided in Section 14-122 of this title and
14 subsection A of this section, the first One Million Two Hundred
15 Sixteen Thousand Dollars (\$1,216,000.00) of proceeds from both the
16 permit fees and the overweight permit fees imposed pursuant to
17 subsection A of this section collected monthly shall be apportioned
18 by Service Oklahoma as provided in Section 1104 of this title. For
19 the fiscal year beginning July 1, 2022, and all subsequent years,
20 the next Two Million Five Hundred Thousand Dollars (\$2,500,000.00)
21 of proceeds from both the permit fees and the overweight permit fees
22 imposed pursuant to subsection A of this section collected monthly
23 shall be remitted to the Department of Public Safety for the purpose
24 of staffing the port of entry weigh stations with Department of

1 Public Safety port of entry officers whose powers and duties shall
2 be specified by the Department of Public Safety through the
3 promulgation of rules. For the fiscal year beginning July 1, 2017,
4 and all subsequent years, all proceeds collected from both the
5 permit fees and the overweight permit fees imposed pursuant to
6 subsection A of this section in excess of Three Million Seven
7 Hundred Sixteen Thousand Dollars (\$3,716,000.00) shall be deposited
8 in the Weigh Station Improvement Revolving Fund as provided in
9 Section 1167 of this title for the purpose set forth in that section
10 and may be used for motor carrier permitting systems and motor
11 carrier safety and enforcement.

12 SECTION 6. AMENDATORY 47 O.S. 2021, Section 14-118, as
13 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
14 Section 14-118), is amended to read as follows:

15 Section 14-118. A. 1. Pursuant to such rules as may be
16 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
17 carriers may engage in any activity in which carriers subject to the
18 jurisdiction of the federal government may be authorized by federal
19 legislation to engage. Provided further, the Transportation
20 Commission shall formulate for the State Trunk Highway System,
21 including the National System of Interstate and Defense Highways,
22 and for all other highways or portions thereof, rules governing the
23 movement of vehicles or loads which exceed the size or weight
24 limitations specified by the provisions of this chapter.

1 2. Such rules shall be the basis for the development of a
2 system by the Executive Director of the Department of Transportation
3 for the issuance of permits for the movement of oversize or
4 overweight vehicles or loads. Such system shall include, but not be
5 limited to, provisions for duration, seasonal factors, hours of the
6 day or days when valid, special requirements as to flags, flagmen
7 and warning or safety devices and other such items as may be
8 consistent with the intent of this section. The permit system shall
9 include provisions for the collection of permit fees as well as for
10 the issuance of the permits by telephone, electronic transfer or
11 such other methods of issuance as may be deemed feasible.

12 3. The Department of Transportation is authorized to charge a
13 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
14 requested to be issued by facsimile machine or by any other means of
15 electronic transmission, transfer or delivery. The fee shall be in
16 addition to any other fee or fees assessed for the permit. ~~The Two~~
17 Dollars (\$2.00) of each such fee collected shall be deposited in the
18 State Treasury to the credit of the Department of Transportation and
19 the monies shall be expended by the Department of Transportation
20 solely for the purposes provided for in this chapter. One Dollar
21 (\$1.00) of each such fee collected shall be deposited to the credit
22 of the Rebuilding Oklahoma Access and Driver Safety Fund.

23

24

1 4. It is the purpose of this section to permit the movement of
2 necessary overweight and oversize vehicles or loads consistent with
3 the following obligations:

- 4 a. protection of the motoring public from potential
5 traffic hazards,
- 6 b. protection of highway surfaces, structures, and
7 private property, and
- 8 c. provision for normal flow of traffic with a minimum of
9 interference.

10 B. The Transportation Commission shall prepare and publish a
11 map of this state showing by appropriate symbols the various highway
12 structures and bridges in terms of maximum size and weight
13 restrictions. This map shall be titled "Oklahoma Load Limit Map"
14 and shall be revised periodically to maintain a reasonably current
15 status and in no event shall a period of two (2) years lapse between
16 revisions and publication of the printed version of the Oklahoma
17 Load Limit Map. This map shall also be made available by the
18 Department of Transportation on the Internet, and in no event shall
19 a period of six (6) months lapse between revisions of the
20 information provided on the Internet. Provided, further, the
21 Secretary of the Department of Transportation shall prepare and
22 publish a map of this state showing the advantages of this state as
23 a marketing, warehousing and distribution network center for motor
24 transportation sensitive industries.

1 C. The Executive Director of the Department of Transportation,
2 or an authorized representative, shall have the authority, within
3 the limitations formulated under provisions of this chapter, to
4 issue, withhold or revoke special permits for the operation of
5 vehicles or combinations of vehicles or loads which exceed the size
6 or weight limitations of this chapter. Every such permit shall be
7 carried in the vehicle or combination of vehicles to which it refers
8 and shall be open to inspection by any law enforcement officer or
9 authorized agent of any authority granting such permit, and no
10 person shall violate any of the terms or conditions of such special
11 permit.

12 D. It shall be permissible in the transportation of empty
13 trucks on any road or highway to tow by use of saddlemounts, i.e.,
14 mounting the front wheels of one vehicle on the bed of another
15 leaving the rear wheels only of such towed vehicle in contact with
16 the roadway. One vehicle may be fullmounted on the towing or towed
17 vehicles engaged in any driveaway or towaway operation. No more
18 than three saddlemounts may be permitted in such combinations. The
19 towed vehicles shall be securely fastened and operated under the
20 applicable safety requirements of the United States Department of
21 Transportation and such combinations shall not exceed an overall
22 length of seventy-five (75) feet. Provided, a driveaway saddlemount
23 with fullmount vehicle transporter combination may reach an overall
24

1 length of ninety-seven (97) feet on the National Network of
2 Highways.

3 E. The Executive Director of the Department of Transportation,
4 upon application of any person engaged in the transportation of
5 forest products in the raw state, which is defined to be tree-length
6 logs moving from the forest directly to the mill, or upon
7 application of any person engaged in the hauling for hire or for
8 resale of round baled hay with a total outside width of eleven (11)
9 feet or less, shall issue an annual permit, upon payment of a fee of
10 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
11 authorizing the operation by such persons of such motor vehicle load
12 lengths and widths upon the highways of this state except on the
13 National System of Interstate and Defense Highways. The Department
14 shall deposit Ten Dollars (\$10.00) of each such fee collected to the
15 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.
16 Provided, however, the restriction on use of the National System of
17 Interstate and Defense Highways shall not be applicable to persons
18 engaged in the hauling of round baled hay with a total outside width
19 of eleven (11) feet or less.

20 F. The Executive Director of the Department of Transportation,
21 upon application of any person engaged in the transportation of
22 overwidth or overheight equipment used in soil conservation work
23 with a total outside width of twelve (12) feet or less, shall issue
24 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~

1 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the
2 operation by such persons of such motor vehicle load lengths and
3 widths upon the highways of this state except on the National System
4 of Interstate and Defense Highways. The Department shall deposit
5 Ten Dollars (\$10.00) of each such fee collected to the credit of the
6 Rebuilding Oklahoma Access and Driver Safety Fund.

7 G. Farm equipment including, but not limited to, implements of
8 husbandry as defined in Section 1-125 of this title shall be
9 exempted from the requirement for special permits due to size. Such
10 equipment may move on any highway, except those highways which are
11 part of the National System of Interstate and Defense Highways,
12 during the hours of darkness and shall be subject to the
13 requirements as provided in Section 12-215 of this title. In
14 addition to those requirements, tractors pulling machinery over
15 thirteen (13) feet wide must have two amber flashing warning lamps
16 symmetrically mounted, laterally and widely spaced as practicable,
17 visible from both front and rear, mounted at least thirty-nine (39)
18 inches high.

19 H. Any rubber-tired road construction vehicle including rubber-
20 tired truck cranes and special mobilized machinery either self-
21 propelled or drawn carrying no load other than component parts
22 safely secured to the machinery and its own weight, but which is
23 overweight by any provisions of this chapter, shall be authorized to
24 move on the highways of this state. Movement of such vehicles shall

1 be authorized on the National System of Interstate and Defense
2 Highways only by special permit secured from the Executive Director
3 of the Department of Transportation or an authorized representative
4 upon determination that the objectives of this section will be
5 served by such a permit and that federal weight restrictions will
6 not be violated. The special permit shall be:

7 1. A single-trip permit issued under the provisions of this
8 section and Section 14-116 of this title; or

9 2. A special annual overweight permit which shall be issued for
10 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
11 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00). The Department shall deposit
12 Twenty-five Dollars (\$25.00) of each such fee collected to the
13 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

14 The weight of any such vehicle shall not exceed six hundred
15 fifty (650) pounds multiplied by the nominal width of the tire. The
16 vehicle shall be required to carry the safety equipment adjudged
17 necessary for the health and welfare of the driving public. If any
18 oversized vehicle does not come under the other limitations of the
19 present laws, it shall be deemed that the same shall travel only
20 between the hours of sunrise and sunset. The vehicle, being
21 overweight but of legal dimension, shall be allowed continuous
22 travel. The vehicles, except special mobilized machinery, shall be
23 exempt from the laws of this state relating to motor vehicle
24

1 registration, licensing or other fees or taxes in lieu of ad valorem
2 taxes.

3 I. 1. When such machinery has a width greater than eight and
4 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
5 (45) feet, or a height in excess of thirteen and one-half (13 1/2)
6 feet, then the permit may restrict movement to a fifty-mile radius
7 from an established operating base, and may designate highways to be
8 traveled, hours of travel and when flagmen may be required to
9 precede or follow the equipment.

10 2. Possession of a permit shall in no way be construed as
11 exempting such equipment from the authority of the Executive
12 Director of the Department of Transportation to restrict use of
13 particular highways, nor shall it exempt owners or operators of such
14 equipment from the responsibility for damage to highways caused by
15 movement of the equipment. Nothing in this subsection shall apply
16 to machinery used in highway construction or road material
17 production.

18 3. Upon the issuance of a special mobilized machinery driveaway
19 permit as provided in this subsection, special mobilized machinery
20 manufactured in Oklahoma shall be permitted to move upon the
21 highways of this state from the place of manufacture to the state
22 line for delivery and exclusive use outside the state, and may be
23 temporarily returned to Oklahoma for modification and repair, with
24 subsequent movement back out of the state. Special driveaway

1 permits for such movements shall be issued by the Executive Director
2 of the Department of Transportation, who may act through designated
3 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
4 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement. The Department
5 shall deposit Five Dollars (\$5.00) of each such fee collected to the
6 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

7 4. The size of the special mobilized machinery shall not be
8 such as to create a safety hazard in the judgment of the Executive
9 Director of the Department of Transportation. Permits for such
10 special mobilized machinery shall specify a maximum permissible road
11 speed of sixty (60) miles per hour, designate safety equipment to be
12 carried and may exclude use of highways of the interstate system.

13 5. When such equipment has a width greater than eight and one-
14 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
15 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
16 the permit may designate highways to be traveled, hours of travel
17 and when flagmen may be required to precede or follow the equipment.

18 6. Possession of a special driveway permit shall in no way be
19 construed as exempting such equipment from the authority of the
20 Executive Director of the Department of Transportation to restrict
21 use of particular highways, nor shall it exempt the owners or
22 operators of such equipment from the responsibility for damage to
23 highways caused by the movement of such equipment.

1 SECTION 7. AMENDATORY 47 O.S. 2021, Section 14-120, as
2 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
3 Section 14-120), is amended to read as follows:

4 Section 14-120. A. Manufactured items, with the exception of
5 manufactured homes as defined in Section 1102 of this title and
6 industrialized housing as described in subsection B of Section 14-
7 103A of this title, exceeding sixteen (16) feet but not exceeding
8 twenty-three (23) feet in width traveling:

9 1. From a point of manufacture in this state to a point of
10 delivery in this state or to a point of delivery in another state;
11 or

12 2. From a point of manufacture outside this state to a point of
13 delivery in this state or to a point of delivery in another state
14 shall be permitted, upon receipt of a special movement permit issued
15 under the provisions of subsection B of this section, to travel on
16 any state or U.S. highway in Oklahoma. Provided, however, the
17 Executive Director of the Department of Transportation is authorized
18 to allow such items in excess of twenty-three (23) feet in width to
19 travel on such highway if it is in the best interest of the state
20 and a special moving permit has been issued. Provided, further,
21 that no such load in excess of the limitations set forth in the
22 applicable United States Code shall be permitted to travel upon any
23 portion of the National System of Interstate and Defense Highways.

1 B. 1. Every person desiring to transport manufactured items
2 pursuant to the provisions of this section shall apply to the
3 Department of Transportation for a special movement permit on an
4 application form prescribed by the Department. Upon approval of the
5 application by the Department of Transportation, a special movement
6 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
7 Seven Hundred Fifteen Dollars (\$715.00). The Department shall
8 deposit Two Hundred Fifteen Dollars (\$215.00) of each such fee
9 collected to the credit of the Rebuilding Oklahoma Access and Driver
10 Safety Fund.

11 2. Except as provided in Section 14-122 of this title and in
12 paragraph 1 of this subsection, monies received from such special
13 movement permit fees shall be deposited in the State Treasury to the
14 credit of the General Revenue Fund. A permit issued pursuant to the
15 provisions of this subsection shall expire upon the completion of
16 one trip specified in subsection A of this section. The special
17 movement permit, and fee related thereto, shall be in addition to
18 the permit and fees required by Section 14-116 of this title.

19 C. Highway escorts shall be required for transportation of
20 items pursuant to the provisions of this section according to rules
21 and regulations prescribed by the Department of Transportation.

22 SECTION 8. AMENDATORY 47 O.S. 2021, Section 14-121, as
23 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
24 Section 14-121), is amended to read as follows:

1 Section 14-121. A. No person shall operate a special
2 combination vehicle within this state without a special combination
3 vehicle permit for the vehicle issued by the Department of
4 Transportation. Such permit may be issued for operation upon
5 Federal Aid Interstate Highways or four-lane divided Federal Aid
6 Primary Highways and for access or egress between points of origin
7 or destination.

8 B. 1. The Executive Director of the Department of
9 Transportation shall promulgate rules for the issuance of special
10 combination vehicle permits and shall collect an annual fee of ~~Two~~
11 ~~Hundred Forty Dollars (\$240.00)~~ Three Hundred Forty-five Dollars
12 (\$345.00) for each such permit issued. The Department shall deposit
13 One Hundred Five Dollars (\$105.00) of each such fee collected to the
14 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

15 2. Except as provided in Section 14-122 of this title and in
16 paragraph 1 of this subsection, fees collected pursuant to this
17 section shall be remitted to the State Treasurer to be credited to
18 the General Revenue Fund in the State Treasury.

19 C. For the purposes of this section, a special combination
20 vehicle shall consist of a truck-tractor semitrailer combination
21 towing two complete trailers or semitrailers. No semitrailer or
22 trailer used in such a combination shall have a length greater than
23 twenty-nine (29) feet nor shall a special combination vehicle exceed
24

1 the weight limitations imposed by Sections 14-109 and 14-116 of this
2 title.

3 SECTION 9. AMENDATORY 69 O.S. 2021, Section 1521, as
4 amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025,
5 Section 1521), is amended to read as follows:

6 Section 1521. A. There is hereby created in the State Treasury
7 a fund to be known as the "Rebuilding Oklahoma Access and Driver
8 Safety Fund". The fund shall be a continuing fund, not subject to
9 fiscal year limitations, and shall consist of all appropriations and
10 transfers made by the Legislature. All monies accruing to the
11 credit of the fund are hereby appropriated and may be budgeted and
12 expended by the Department of Transportation for the purposes
13 authorized by subsection D of this section in amounts as authorized
14 by the Oklahoma Legislature. Expenditures from the fund shall be
15 made upon warrants issued by the State Treasurer against claims
16 filed as prescribed by law with the Director of the Office of
17 Management and Enterprise Services for approval and payment.

18 B. Beginning July 1, 2021, except for an amount equivalent to
19 the amount of revenue apportioned to the Rebuilding Oklahoma Access
20 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
21 Section 1104 of Title 47 of the Oklahoma Statutes and from other
22 sources apportioned to the Fund by law, there shall be apportioned
23 to the funds specified in this subsection from the monies that would
24 otherwise be apportioned to the General Revenue Fund by Section 2352

1 of Title 68 of the Oklahoma Statutes from the revenues derived
2 pursuant to subsections A, B and E of Section 2355 of Title 68 of
3 the Oklahoma Statutes amounts as follows:

4 1. Subject to any reductions required by subsection C of this
5 section, there shall be apportioned to the Rebuilding Oklahoma
6 Access and Driver Safety Fund:

7 a. for the fiscal year beginning July 1, 2021, and for
8 each fiscal year thereafter, Eighty Million Dollars
9 (\$80,000,000.00), which shall be allocated and used by
10 the Department of Transportation first for the purpose
11 of making any required payments for principal,
12 interest or other costs of borrowing with respect to
13 the obligations issued pursuant to Section 341 of
14 Title 73 of the Oklahoma Statutes and after any such
15 required payment has been made then for the purposes
16 otherwise authorized by this section, plus

17 b. the total amount apportioned to the Rebuilding
18 Oklahoma Access and Driver Safety Fund for the
19 preceding fiscal year which, except for the amount
20 prescribed by subparagraph a of this paragraph, shall
21 be apportioned before any other amount is apportioned
22 pursuant to Section 2352 of Title 68 of the Oklahoma
23 Statutes, plus
24

c. an additional amount that is required in order for the total apportionment to the Rebuilding Oklahoma Access and Driver Safety Fund from all sources, except for the amount apportioned pursuant to Section 1 of this act and Sections 14-103, 14-103G, 14-109, 14-116, 14-118, 14-120, and 14-121 of Title 47 of the Oklahoma Statutes, for such fiscal year to equal:

- (1) Five Hundred Seventy-five Million Dollars (\$575,000,000.00) for the fiscal year beginning July 1, 2021,
- (2) Five Hundred Ninety Million Dollars (\$590,000,000.00) for the fiscal year beginning July 1, 2022, and
- (3) Six Hundred Ten Million Dollars (\$610,000,000.00) for the fiscal year beginning July 1, 2025, and for each fiscal year thereafter.

All amounts apportioned pursuant to this paragraph shall be divided into twelve equal amounts to be apportioned each month during the fiscal year except the amount specified in subparagraph a of this paragraph which amount shall be allocated in its full amount in cash not later than July 30 each year or such later date as may be required in order for the amount to be allocated in cash; and

2. For each fiscal year after the apportionments required by paragraph 1 of this subsection have been made:

1 a. the next Two Million Dollars (\$2,000,000.00) shall be
2 apportioned to the Oklahoma Tourism and Passenger Rail
3 Revolving Fund created pursuant to Section 325 of
4 Title 66 of the Oklahoma Statutes to be used for
5 capital and operating costs for the "Heartland Flyer"
6 rail project, and

7 b. the next Three Million Dollars (\$3,000,000.00) shall
8 be apportioned to the Public Transit Revolving Fund
9 created pursuant to Section 4031 of this title to be
10 used for purposes authorized by law other than the
11 purpose described by subparagraph a of this paragraph.

12 All amounts apportioned pursuant to this paragraph shall be
13 divided into twelve equal amounts to be apportioned each month
14 during the fiscal year.

15 C. In the event that the Director of the Office of Management
16 and Enterprise Services declares a General Revenue Fund revenue
17 failure pursuant to Section 34.49 of Title 62 of the Oklahoma
18 Statutes, and agency allocations are reduced pursuant to the
19 provisions of Section 34.49 of Title 62 of the Oklahoma Statutes,
20 the amounts that would otherwise be apportioned to the ROADS Fund
21 by:

22 1. Subparagraph a of paragraph 1 of subsection B of this
23 section, only to the extent that the amount is not required for debt
24 service related to the obligations authorized pursuant to Section

1 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of
2 the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896
3 of the 1st Session of the 58th Oklahoma Legislature;

4 2. Subparagraphs b and c of paragraph 1 of subsection B of this
5 section; and

6 3. Subparagraphs a and b of paragraph 2 of subsection B of this
7 section,

8 shall be reduced by a percentage equal to that required of the
9 General Revenue Fund appropriations to state agencies and such
10 reductions shall occur during the entire fiscal year and for any
11 month during which such reductions are required by the Office of
12 Management and Enterprise Services and by the same percentage as
13 that required of the agencies for such General Revenue Fund
14 appropriations.

15 D. The Department of Transportation shall use the monies in the
16 Rebuilding Oklahoma Access and Driver Safety Fund for:

17 1. The construction and maintenance of state roads, bridges and
18 highways;

19 2. The direct expenses of operating and maintaining the state
20 highway system, including bridges;

21 3. Direct expenses incurred in constructing, repairing, and
22 maintaining state highways, farm-to-market roads, county highways
23 and bridges as authorized by law;

24 4. Matching federal funds;

1 5. The purchase of materials, tools, machinery, motor vehicles,
2 and equipment necessary or convenient for the construction and
3 maintenance of the state highway system and bridges;

4 6. Debt service incurred prior to January 1, 2006, for Capital
5 Improvement Program bonds sold pursuant to Section 2001 of this
6 title;

7 7. Debt service incurred on or after July 1, 2009, with respect
8 to obligations authorized to be issued pursuant to Section 341 of
9 Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the
10 Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of
11 the 1st Session of the 58th Oklahoma Legislature; and

12 8. For fiscal years beginning on or after July 1, 2025, and
13 ending on or prior to June 30, 2033, Twenty Million Dollars
14 (\$20,000,000.00) per fiscal year for the construction, repair, and
15 maintenance of weigh stations on the state highway system.

16 E. From the monies allocated pursuant to the provisions of
17 subparagraph a of paragraph 1 of subsection B of this section each
18 fiscal year, the Department of Transportation shall make payments
19 required for the payment of principal, interest and other costs
20 related to the obligations issued by the Oklahoma Capitol
21 Improvement Authority as authorized by Section 341 of Title 73 of
22 the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma
23 Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st
24 Session of the 58th Oklahoma Legislature, and such payments shall be

1 made by the Department each fiscal year before such monies are used
2 for any other purpose.

3 SECTION 10. This act shall become effective November 1, 2026.
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